

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 28, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:07 p.m. via electronic conference meeting. Attending electronic conference meeting were: COUNCIL PRESIDENT – Dr. Mark Rinne; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Mayor Marian J. Orr. Also attending: Kris Jones, City Clerk.

Mr. Cook advised that as sponsor of agenda item #16, he wishes to withdraw the item at this time. There being no objections, President Rinne advised the item has been withdrawn. Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Shanor, and pursuant to support received by Mr. Luna and Mr. Cook, agenda item #13 was removed from the Consent Agenda. Upon request by Mr. Shanor, and pursuant to support received by Mr. Luna and Mr. Cook, agenda item #18 (a) was removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”.

[CA] Minutes from Regular Meeting of the Governing Body on September 14, 2020. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on September 21, 2020. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Amending various sections of Chapter 15.50, Historic Design Guidelines, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming. Milward Simpson, member of Cheyenne Historic Preservation Board (HPB), advised he was available for any questions and noted he has worked with the Planning & Development Department on the proposed changes that will provide efficiency and simplify the appeals process. Reporting for Public Services Committee, Mr. Case moved to approve on third and final reading, seconded by Mr. Cook. Mr. Case moved to amend by substitute dated September 18, 2020, seconded by Mr. White. Charles Bloom, Planning & Development Director, explained the amendment clarifies subsections where it may be interpreted that a full building permit be submitted for review by the HPB. Previously expressed concerns were reiterated relating to the lack of notification of adjacent property owners. Upon inquiry, Mr. Bloom and Mr. Simpson advised they have not heard or been made aware of any comments or concerns from members of the public in the last 2 weeks regarding this proposal. Further comments related adjacent property owner notification were expressed noting that due to the current electronic meeting structure

caused by the COVID pandemic, many people may not be aware of the proposed changes, therefore, they would not have offered comments/concerns. Upon inquiry, Mr. Laybourn advised he has not spoken to affected property owners. Supportive comments were made relating to proposed changes and appreciation was expressed to Mr. Simpson and Mr. Bloom for their work on the proposed changes. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. [Clerk’s note: Dr. Rinne advised as acting Chair, he would not be casting votes unless it would be to break a tie vote] (#4325)

ORDINANCE – 2nd READING – Amending the Unified Development Code of the City of Cheyenne, Wyoming to create the Support Services Zone District and establishing design criteria. Charles Bloom, Planning & Development Director, reported the purpose of the amendment is to create a new zone district in response to F.E. Warren Air Force Base proposed development on the edge of base property accessible to the public. He advised that after reviewing the current Unified Development Code (UDC) it was discovered there isn’t a use that would support military operations. He noted the proposed amendments are a blend of several districts that are more practical for developers to utilize. Mr. Bloom advised this is a major change that is proposed to create a unique lot type that allows up to 90% lot coverage, has no set back requirements and can be built to property lines. He reviewed proposed design criteria including: parking requirements, signage, multi-family requirements, commercial development standards and material requirements, big box building requirements, alternative equivalent option and a reduction in living landscape materials requirement to help with water conservation. It was noted that approximately 2 weeks ago this was presented by Brendan Ames, City’s Chief Economic Development Officer, to members of the military of which who seemed receptive of the plan. Mr. Case moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”.

ORDINANCE – 1st READING – Amending Chapter 10.44, Weight Limits, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Amending Chapter 5.04, Business Licenses Generally, amending Chapter 5.08, Business License Fees, and creating a new Chapter 5.77, Nicotine Product Sales, of Title 5, Business Licenses and Regulations; amending Chapter 8.64, Smoking in Public Places, of Title 8, Health and Safety; and amending Chapter 9.16, Offenses By or Against Minors, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsors – Dr. Rinne and Mr. White)

RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Buffalo Ridge Estates, Eleventh Filing, a replat of all of Lot 15, Block 21, Buffalo Ridge Estates, Cheyenne, Laramie County, Wyoming (located southeast of the intersection of Hilltop Avenue and Bluff Place). Casey Palma, Steil Surveying and agent for the owner, advised the final plat was defeated in February 2020 by a tie vote and is before the governing body again with minor changes. Mr. Palma reported past concerns were related to smaller proposed lot sizes than the surrounding

neighborhood and street facing garage placement. He advised concerns were reviewed and it was decided they would add a provision that would require side or alley loading garages that would prevent drivers backing onto Hilltop. Mr. Palma provided additional comments relating to lot sizes in relation to surrounding neighborhood and previous county developments with required larger lot sizes due to septic system requirements. It was noted that proposed lot width is identical to those on the west side of Hilltop. Mr. Palma stated the proposed residential units would provide affordable housing prices as lower prices and smaller are desired for the community. Additionally, he advised this is a positive infill project that will raise median home costs in the neighborhood and the plat meets United Development Code (UDC) requirements in its entirety. Upon inquiry, Mr. Palma provided additional lot size footprint information relating to total lot square footage and single-family versus duplex residential structure styles. Mr. Case moved to adopt, seconded by Mr. Roybal. Dr. Rinne, Council President and acting chairman, relinquished duties of the Chair to Mr. White, Vice President, on this item for the purpose of being able to discuss the proposal. Dr. Rinne stated that proposed lots are 1/3 smaller than they are in the neighborhood and it's hard to imagine 2 houses fitting on that lot size. He doesn't think the proposed smaller lot sized residential units would benefit the neighborhood and is opposed to duplexes in this area. Dr. Rinne noted this is similar to a project that was previously turned down in Ward 3. Support was expressed for the project, infill developments and affordable housing. Kris Jones, City Clerk, provided clarification regarding staff conditions relating to the Preliminary Plat on the agenda. Mr. Cook moved to adopt, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body present with the exception of Dr. Rinne voting "no". It was noted for the record that Mr. White as Acting Chairman for this item, did not cast a vote. (#6091)

[CA] RESOLUTION – Providing for partial vacation of the Frontier North Final Plat. Motion (per Consent Agenda) carried. (#6092)

RESOLUTION – Reappropriating the Fiscal Year 2021 Budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113. Mr. White moved to adopt, seconded by Mr. Laybourn. Concern was expressed related to the resolution's accompanying memorandum from Robin Lockman, City Treasurer, regarding general funds for a new Police Crime Analyst position, asking Laramie County School District #1 for an additional \$80,000.00 and the fulltime employee cap. Upon inquiry, Robin Lockman, City Treasurer, noted that the Ice & Events Maintenance Technician position wasn't included in the budget and was one of the positions that was not rehired when vacated due to the hiring freeze. Comment was made related to concern over filling a Recreation Specialist position at a higher rate than the maintenance technician and was not included in the FY 2021 budget. Upon inquiry related to the Crime Lab Analyst position and in relation to the fulltime employee (FTE) cap, Chief Brian Kozak, Police Department, advised he provided information at the recent Finance Committee meeting that there are additional budget funds for the position, however, they do not plan on hiring the position and funding will go towards next year's budget. Chief Kozak stated that due to uncertainty resulting from the COVID pandemic and possible future school closures, the city may not have to provide school resource officer services all year. Ms. Lockman reported the resolution adds the LCSD#1 revenue of \$80,000.00 to the Police budget and it can be held in the Professional Services line item and noted the memorandum issued with the reappropriation is informational only, not a binding document. She further noted she can provide an updated memorandum if desired to reflect the discussion on

this item. Upon further inquiry, Ms. Lockman reported the resolution does not authorize the hiring of the position and the position could be filled if approved as the city would exceed the FTE cap. Michael O'Donnell, City Attorney, confirmed that the FTE cap remains in place by ordinance and the resolution is only explanatory and doesn't increase the FTE cap. He further explained the Chief has stated the position will not be filled but desires the opportunity to create the position. It was noted that in order to increase the FTE cap, the ordinance would need to come back before the governing body to be amended. Chief Kozak reported that at the onset of the COVID pandemic, LCSD#1 was not billed when schools closed for resource officers as they weren't in the schools, however, LCSD#1 felt obligated to honor the previous agreement and continued to pay the city. Upon inquiry, Jason Sanchez, Community Recreation & Events Deputy Director, reported that prior to the pandemic they had lost a programmer and maintenance technician at the Ice & Events Center. They feel the programmer position is important for success of the establishment and won't increase FTE numbers but will be backfilling a position. Mr. Sanchez and Ms. Lockman advised the position swap revenue can be made neutral by waiting a month to fill it along with other budget adjustments. Mr. Shanor moved to amend by adding the following footnote to the resolution: Footnote 1-Passage of this resolution is not an endorsement of the memorandum dated September 9, 2020 from City Treasurer Robin Lockman to Mayor Orr and members of the City Council, seconded by Mr. Luna. Mr. Shanor stated he believes the amendment makes it clear that there has been expressed consternation related to the memorandum. Motion to amend carried. Voting "yes" all members of the governing body present with the exception of Mr. Laybourn voting "no". Mr. Shanor moved to amend by deleting the Ice & Events Center row and adjusting totals accordingly, seconded by Mr. Luna. Motion to amend carried. Voting "yes"—all members of the governing body present with the exception of Mr. Laybourn voting "no". Main motion as twice amended carried. Voting "yes"—all member of the governing body present. (#6093)

[CA] RESOLUTION – Amending Resolution #6058, the City of Cheyenne Comprehensive Consolidated Plan 2020-2024 and 2020 Annual Action Plan, prepared by the Cheyenne Housing and Community Development Office – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Certifying the Whitney Road Corridor Plan – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Supporting and recommending the United States Congress propose and send to the states for ratification, an amendment to the United States Constitution clarifying the distinction between the rights of natural persons and the rights of corporations, unions, and other legal entities, and providing congress and the state legislatures the right to regulate monies raised and spent for political purposes – this item removed from agenda at sponsor's request.

Preliminary Plat for Whitney Ranch, 4th Filing, a plat of a portion of the SE¼, Section 23, T14N, R66W, of the 6th PM, Laramie County, Wyoming (located northeast of the intersection of Dell Range Boulevard and Whitney Road). Mr. Case moved to acknowledge the Planning Commission's recommendation to approve with conditions 1 a, b, c and d, 2 and 3, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body present with the exception Mr. Laybourn voting "no".

Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for school resource officers for the 2020-2021 school year and summer school 2021 (Revenue to City). Chief Kozak advised negotiations were made with LCSD#1 who requested the following changes: ability to flex out officer's schedules, if an officer is absent more than 5 days the city will replace the officer, LCSD#1 is not required to pay for professional training and if an officer is pulled for an emergency for half a day they don't want to pay for the whole day. Chief Kozak advised he brought up the charge of base salary for officers because of officer experience and he requested LCSD#1 pay for actual salary and benefits for 75% of year to which they agreed. He further noted the city pays for insurance, uniforms, equipment, etc. Mr. White moved to approve, seconded by Mr. Laybourn. Motion carried. Voting "yes" all members present. (#7238)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and Summit Engineering for the East Park Greenway Underpass and Drainage Plan (MPO Federal Funding). Motion (per Consent Agenda) carried (in an amount not to exceed \$68,030.00). (#7239)

[CA] Agreement between the Wyoming Department of Transportation (WYDOT) and the City of Cheyenne Transit Program, to provide operating assistance in the amount of \$198,533.00 for Fiscal Year 2021 (Revenue to City) – referred to Finance Committee.

[CA] Agreement between the Wyoming Department of Health, Aging Division, to provide support services to persons 60 years or older under the Title III-B Program Grant for Fiscal Year 2021 (Revenue to City) – referred to Finance Committee.

[CA] A 0.008 Acre permanent and exclusive easement to construct, maintain, operate, remove, and replace a power line for the Christensen Road bridge and roadway lighting on property owned by Virginia Bowers within Laramie County, Wyoming (2017 Specific Purpose Option Tax) – referred to Finance Committee.

[CA] A 0.053 Acre permanent and exclusive easement to construct, maintain, operate, remove, and replace a power line for the Christensen Road bridge and roadway lighting on property owned by Kathy Julius within Laramie County, Wyoming (2017 Specific Purpose Option Tax) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6786 between the City of Cheyenne and Novo Benefits, LLC, to extend the term for an additional three (3) year period (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$214,755.00). (#6786)

[CA] Contract Modification #1 to Contract #7195 between the City of Cheyenne and Simon Contractors for additional construction services for the Prairie Avenue and Frontier Mall Drive Intersection Project (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$304,999.55). (#7195)

[CA] Contract Modification #2 to Contract #6960 between the City of Cheyenne and Reiman Corporation for cost impacts associated with unforeseen site conditions, partial release of retainage and reduction of retainage from 10% to 5% to meet current state statutes for the Christensen Railroad Overpass & Corridor Project (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$143,309.63). (#6960)

[CA] Contract Modification #2 to Contract #6976 between the City of Cheyenne and Reiman Corporation for partial release of retainage and additional funds for final landscaping for the Evers Blvd. Reconstruction Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$20,000.00). (#6976)

[CA] Contract Modification #1 to Contract #7200 between the City of Cheyenne and JTL Group Inc. d/b/a/ Knife River for additional construction services and changes to retainage on the Allison Road and Cribbon Avenue Median Improvements Project (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-1-21 for a contract between the City of Cheyenne and A1 Organics for furnishing compost screening and grinding services for the City of Cheyenne, Compost Facility (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from A1 Organics, Eaton, CO, in an amount not to exceed \$60,000.00). (#7240)

[CA] Consideration of Bid #S-4-21 for a contract between the City of Cheyenne and Mid-America Pool Renovation, Inc. for the Cheyenne Aquatic Center Main Pool Shell Resurfacing Project (2012 Specific Purpose Option Tax Overage Funds). Motion (per Consent Agenda) carried (accepted bid from Mid-America Pool Renovation, Inc., Grandview, MO, in an amount not to exceed \$194,135.00). (#7241)

[CA] Consideration of Bid #S-5-21 for a contract between the City of Cheyenne and Academy Sports Turf, Inc. for the Powers Field Synthetic Turf Replacement Project (Land and Water Conservation Grant and Recreation Programs Fund Player's Fees). Motion (per Consent Agenda) carried (accepted bid from Academy Sports Turf, Inc., Englewood, CO, in an amount not to exceed \$199,000.00). (#7242)

[CA] Transfer of ownership for a resort liquor license application filed with the City Clerk's Office for Omsai Hospitality, LLC d/b/a Red Lion Hotel and Conference Center of Cheyenne, 204 W. Fox Farm Rd., Cheyenne, Wyoming (license currently held by Driftwood Special Servicing, LLC d/b/a Red Lion Hotel Cheyenne & Conference Center). Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Report of Community Facility Fees Fiscal Year 2019/2020 pursuant to Section 4.2.5 of the Unified Development Code (UDC). Charles Bloom, Planning & Development Director, reported these are park impact fees the city has received and includes public infrastructure fees received. Mr. Bloom provided additional information including: The \$400.00 fee is a common amount that is charged with single family homes, there are 2 different ways to collect fees with building permits and also at time of subdivision and developer is required to bring in park acquisition fees which could vary in price as these are redistributed and used for the particular development. Mr. Luna moved to acknowledge receipt of report, seconded by Mr. White. Motion carried. Voting “yes” - all members of the governing body present.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:19 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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